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Case Number: 25TRCV03223 Hearing Date: September 23, 2026 Dept: P

Motion for Assignment Order of Medicare Benefits

Moving Party: Plaintiff Creditors Adjustment Bureau, Inc.

Responding Party: None

RULING

The court considered the moving papers. Plaintiff's Motion for Assignment Order of Medicare Benefits is GRANTED. The assignment order against Defendant will apply to all Medicare benefits payable to Defendant up to \$83,997.68.

PROCEDURAL BACKGROUND

On September 17, 2025, Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff") filed a complaint against Defendant Ameribest Hospice, Inc. ("Defendant") and DOES 1 through 10, inclusive, alleging four causes of action for: (1) Breach of Contract; (2) Open Book Account; (3) Account Stated; and (4) Reasonable Value.

On January 7, 2026, default was entered against Defendant. On January 21, 2026, Plaintiff filed a request for default judgment against Defendant. On April 6, 2026, the court entered judgment for Plaintiff and against Defendant.

On June 11, 2026, Plaintiff filed the instant motion.

FACTUAL BACKGROUND

Plaintiff alleges that its assignor and Defendant entered into a written agreement through which Plaintiff's assignor agreed to provide a policy of workers compensation insurance to Defendant and Defendant agreed to pay premiums in accordance with the terms and conditions of the policy. (Complaint, ¶ 11.) Plaintiff alleges that Defendant breached the workers compensation insurance policy by failing to pay the premium assessed by Plaintiff's assignor at the conclusion of the policy in the amount of \$65,524.52. (Complaint, ¶ 14.)

LEGAL STANDARD

Code of Civil Procedure Section 708.510(a) provides:

“Except as otherwise provided by law, upon application of the judgment creditor on noticed motion, the court may order the judgment debtor to assign to the judgment creditor or to a receiver appointed pursuant to Article 7 (commencing with Section 708.610) all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments, including but not limited to the following types of payments:

- (1) Wages due from the federal government that are not subject to withholding under an earnings withholding order.
- (2) Rents.
- (3) Commissions.
- (4) Royalties.
- (5) Payments due from a patent or copyright.
- (6) Insurance policy loan value.”

(Code Civ. Proc. Section 708.510(a).)

Code of Civil Procedure Section 708.510(c) further provides:

“[I]n determining whether to order an assignment or the amount of an assignment pursuant to subdivision (a), the court may take into consideration all relevant factors, including the following:

- (1) The reasonable requirements of a judgment debtor who is a natural person and of persons supported in whole or in part by the judgment debtor.
- (2) Payments the judgment debtor is required to make or that are deducted in satisfaction of other judgments and wage assignments, including earnings assignment orders for support.
- (3) The amount remaining due on the money judgment.
- (4) The amount being or to be received in satisfaction of the right to payment that may be assigned.”

(Code Civ. Proc. Section 708.510(c).)

If the court issues an order pursuant to Code of Civil Procedure Section 708.510 applicable to Medicare payments, “the order should specify (i) whether it applies to all Medicare benefits payable to the judgment debtor during a particular period (or indefinite period); or (ii) whether it applies to a particular amount of money payable to the judgment debtor by a specified intermediary or carrier. [See 42 USC § 1396a(a)(32); 42 CFR §§ 424.73(b)(2), 424.86, 424.90]” (Ahart, J., Cal. Practice

DISCUSSION

Moving Party's Argument

Plaintiff moves for an order instructing the Centers for Medicare and Medicaid Services ("CMS") and Noridian Healthcare Solutions, LLC ("NHS") to pay all Medicare reimbursements and payments on claims submitted by Defendant, Judgment Debtor to Plaintiff, Judgment Creditor. Plaintiff argues that Defendant has been assigned a unique National Provider Identifier ("NPI") because Defendant is a home health care provider. Plaintiff argues that Defendant has rights to payments of monies that are due or will become due to it from the CMS and NHS, a regional Medicare payment intermediary, related to Defendant's NPI. Plaintiff requests that the court order state that it will be in effect until the judgment in the sum of \$83,997.68 plus post-judgment costs and interest has been paid in full.

Merits of the Motion

Plaintiff moves for an assignment order instructing the Centers for Medicare and Medicaid Services ("CMS") and Noridian Healthcare Solutions, LLC ("NHS"), a regional Medicare payment intermediary, to pay all Medicare reimbursements and payments on claims submitted by Defendant as Judgment Debtor to Plaintiff as Judgment Creditor.

Plaintiff's counsel declares that no payments have been received from Defendant or anyone to be applied to the default judgment entered in favor of Plaintiff against Defendant in the principal sum of \$83,997.68 (the "Judgment"). (Brown Decl., ¶¶ 3-4.) Plaintiff's counsel declares that the current balance due on the Judgment is \$87,909.38 as interest continues to accrue at \$23.01 per day. (Brown Decl., ¶ 4.) Plaintiff's counsel declares on information and belief that Defendant has rights to payments of monies that are due or will become due to it from CMS and NHS, and that Defendant is a corporation engaged in the home health care industry and "has been assigned a unique National Provider Identifier ("NPI") used for its administrative and financial transactions adopted under The Health Insurance Portability and Accountability Act." (Brown Decl., ¶ 7.) A copy of a printout from the NPI Registry showing the NPI number registered to Defendant is attached to Plaintiff's counsel's declaration as Exhibit 2. (Brown Decl., ¶ 7; Exh. 2.)

Next, Plaintiff's counsel declares on information and belief that Defendant's rights to payments sought to be attached have not previously been assigned. (Brown Decl., ¶ 10.) Plaintiff's counsel further declares that an assignment order is appropriate in this case in order to provide Plaintiff an opportunity to realize a recovery on its Judgment. (Brown Decl., ¶ 11.)

The court finds that the instant motion satisfies the statutory requirements under Code of Civil Procedure Section 708.510. The assignment order against Defendant will apply to all Medicare benefits payable to Defendant up to \$83,997.68.

CONCLUSION

Based on the foregoing, Plaintiff's Motion for Assignment Order of Medicare Benefits is GRANTED. The assignment order against Defendant will apply to all Medicare benefits payable to Defendant up to \$87,909.38.

Moving party is ordered to give notice of ruling.